

SENATE No. 2571

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, August 11, 2025.

The committee on Environment and Natural Resources to whom was referred the petition (accompanied by bill, Senate, No. 597) of Paul R. Feeney, Joanne M. Comerford, James K. Hawkins, Angelo J. Puppolo, Jr. and other members of the General Court for legislation to conserve and improve natural and working lands, report the accompanying bill (Senate, No. 2571).

For the committee,
Rebecca L. Rausch

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An Act providing nature for all.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 2EEEEEE. (a) In order to deliver nature-based solutions to climate change,
4 protect biodiversity, and ensure equitable access to nature, there shall be established and set up
5 on the books of the commonwealth a separate fund to be known as the nature for all fund, which
6 shall be used exclusively for conserving and improving natural and working lands as defined in
7 section 1 of chapter 21N.

8 The executive office of energy and environmental affairs shall make expenditures from
9 the nature for all fund for the following purposes: (1) the creation and improvement of parks,
10 greenspaces, trails, and outdoor recreation access, especially those in underserved
11 neighborhoods; (2) the conservation or restoration of land to protect drinking water and the
12 quality of streams, rivers, lakes and coasts; (3) the conservation or restoration of farms, forests,
13 and other land to advance statewide biodiversity goals, climate goals, natural and working lands

goals, resiliency goals, and environmental justice goals; (4) the conservation of land parcels to provide connectivity between open spaces; (5) the conservation and restoration of lands of indigenous cultural significance and the restoration of access for indigenous people; and (6) the provision of ongoing stewardship, outdoor recreation access, and management of such resources.

(b) Municipalities, regional municipal partnerships, regional planning bodies, watershed associations, land trusts, conservation organizations, state agencies, tribal authorities, and other non-profit organizations shall be lawful recipients of such expenditures.

(c)(1) There shall be credited to the fund all monies received by the commonwealth under chapter 64H from the receipts from sales and use of goods and services classified under the 2022 revision of the North American Industry Classification Codes 459110, 441210, and 713910; provided, that in the event such codes are changed, the successor codes shall be used; and provided further, that such monies shall not include any portion of taxes constituting special receipts within the meaning of subsection (b 1/2) of section 10 of chapter 152 of the acts of 1997.

(2) The amount credited to the fund under this subsection shall be net of the dedicated sales tax revenue amount transferred to the Massachusetts bay transportation authority state and local contribution fund under section 35T of chapter 10 and to the school modernization and reconstruction trust fund under section 35BB of said chapter 10. The fund may accept public and private gifts, grants and donations to further the purposes of this section, and any other monies credited to or transferred from any other source pursuant to state law.

(3) The fund shall be used for expenditures related to the conservation and improvement of natural and working lands by the executive office of energy and environmental affairs, subject to the provisions of paragraphs (a) and (d) of this section, including but not limited to paying or

reimbursing the general fund for payment of debt service on bonds issued by or otherwise payable under a lease or other contract agreement of the commonwealth for land protection purposes.

(d) There shall be a 15-member board called the nature for all board comprised of the secretary of energy and environmental affairs, the commissioner of fish and game, the commissioner of conservation and recreation, the climate chief, 1 member appointed by the senate president, 1 member appointed by the speaker of the house, 1 member appointed by the senate minority leader, 1 member appointed by the house minority leader, and 7 members of the public to be appointed by the governor, hereinafter called the board. The 7 public members shall include representatives of underserved communities and indigenous people, and people with expertise or experience in the purposes listed in paragraph (a) of this section. The secretary of energy and environmental affairs shall hire staff necessary to manage the fund and expenditures therefrom; provided, that such additional staff may be funded through the nature for all fund. The board shall approve regulations for expenditures from the nature for all fund by the executive office of energy and environmental affairs, including but not limited to: (i) requirements for land conservation in environmental justice neighborhoods; (ii) requirements for access and restoration of indigenous land, (iii) guidelines to promote conservation in concert with affordable housing development; (iv) the scope and prioritization of bonds issued pursuant to this section; and (v) prioritization of programs based on progress toward the goals enumerated in paragraph (c)(3) of this section. The board shall approve expenditures from the nature for all fund.

(e) The executive office of energy and environmental affairs shall not make expenditures in accordance with this section that result in or supplant a year-over-year decrease in bond cap spending or program investments made pursuant to its five-year rolling capital plan. The board

shall promulgate limits on the amount of expenditures that may be made from the fund to supplement existing capital programs.

(f) Annually, not later than February 1, the executive office of energy and environmental affairs shall submit to the chairs of the house and senate committees on ways and means, the chairs of the joint committee on environment and natural resources, and the clerks of the house and senate a report delineating expenditures from, balance in, and anticipated future sums to be credited to the nature for all fund.

(g) Annually, not later than March 1, the executive office of energy and environmental affairs shall submit to the board, the environmental justice council established in section 62L of chapter 30, the chairs of the house and senate committees on ways and means, the chairs of the joint committee on environment and natural resources a report of the proportion of funds expended from the nature for all fund that are dedicated to the acquisition or improvement of land in cities or towns containing environmental justice populations as defined in section 62 of chapter 30.

(h) When authorized by a two-thirds a vote taken by the yeas and nays in each chamber of the general court and upon the request of the governor, the state treasurer may issue bonds of the commonwealth as hereinafter provided. Any such bonds shall be special obligations of the commonwealth payable solely from monies credited to the nature for all fund established in this section; provided, however, that notwithstanding any general or special law to the contrary, such bonds shall not be general obligations of the commonwealth. Bonds may be issued in such manner and on such terms and conditions as the state treasurer may determine in accordance with this paragraph and, to the extent not inconsistent with this paragraph, the general laws for

81 the issuance of bonds of the commonwealth. Bonds may be secured by a trust agreement entered
82 into by the state treasurer, with the concurrence of the secretary of administration and finance
83 and the secretary of energy and environmental affairs, on behalf of the commonwealth, which
84 trust agreement may pledge or assign all or any part of monies credited to the nature for all fund
85 and rights to receive the same, whether existing or coming into existence and whether held or
86 thereafter acquired, and the proceeds thereof. The state treasurer may, with the concurrence of
87 the secretary of administration and finance and the secretary of energy and environmental affairs,
88 enter into additional security, insurance or other forms of credit enhancement which may be
89 secured on a parity or subordinate basis with the bonds. A pledge in any such trust agreement or
90 credit enhancement agreement shall be valid and binding from the time such pledge shall be
91 made without any physical delivery or further act, and the lien of such pledge shall be valid and
92 binding against all parties having claims of any kind in tort, contract or otherwise, whether such
93 parties have notice thereof or not. Any such pledge shall be perfected by filing of the trust
94 agreement or credit enhancement agreement in the records of the state treasurer and no filing
95 need be made under chapter 106. Any such trust agreement or credit enhancement agreement
96 may establish provisions defining defaults and establishing remedies and other matters relating to
97 the rights and security of the holders of the bonds or other secured parties as determined by the
98 state treasurer, including provisions relating to the establishment of reserves, the issuance of
99 additional or refunding bonds, whether or not secured on a parity basis, the application of
100 receipts, monies or funds pledged pursuant to such agreement, the regulation of the custody,
101 investment and application of monies and such other matters deemed necessary or desirable by
102 the state treasurer for the security of such bonds. Any such bonds shall be deemed to be
103 investment securities under chapter 106, securities in which any public officer, fiduciary,

104 insurance company, financial institution or investment company may properly invest funds and
105 securities which may be deposited with any public custodian for any purpose for which the
106 deposit of bonds is authorized by law. Any such bonds, the transfer of such bonds and the
107 income from such bonds, including profit on the sale of such bonds, shall at all times be exempt
108 from taxation by and within the commonwealth.

109 The provisions of this section relating to bonds shall also be applicable to the issuance of
110 notes insofar as such provisions may be appropriate for such notes.